

PUBLIC SUBMISSION

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Recently Posted NSF Rules and Notices.

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Request for Information: Development of an Artificial Intelligence Action Plan

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General Comment

Generative AI should absolutely not be allowed to be trained on copyrighted material without the explicit permission of the original creator. Use of copyrighted material cannot be categorized as commentary, search engines, criticism, parody, news reporting, research, or scholarship. When weighed against the four "fair use" factors:

1. The purpose and character of the use, including whether such use is of a commercial nature or is for nonprofit educational purposes;
2. The nature of the copyrighted work;
3. The amount and substantiality of the portion used in relation to the copyrighted work as a whole; and
4. The effect of the use upon the potential market for or value of the copyrighted work.

It's easy to point out that this use fails to pass #1 and #4 as generative AI is very frequently used for commercial purposes, if it is trained to mimic an artist's existing works, it will directly reduce the market for and value of that artist's copyrighted work. One may argue that the generative AI isn't producing exact copies of the work it is trained on, but the fact stands that it CANNOT do what it does and create similar works without being trained on the existing ones. If the artists explicit consent to use the work is not given, it shouldn't be used to train a machine to copy elements from the work to create similar works. This shouldn't be a difficult concept. If the AI corporations want to train their algorithms on copyrighted works in order to make it create similar works for commercial purposes, they should be required to obtain the original artist's legal permission to use the work. Particularly since the use of the generative AI will be in direct market competition with the original artist.